

Michigan first-OWI set-aside application

boundary | SYNTHETIC REVIEW EXAMPLE - DO NOT FILE

This packet demonstrates completion from explicit synthetic answers. It is not an eligibility determination, a signed application, certified court records, proof of mailing, or a court decision. Every statement on the official application must be true before a real participant signs it.

Components

MC227 pages 1-2: application and oath. Page 3: notice of hearing and proof of service. Page 4: official instructions, preserved. An additional sheet follows only when item 1, 3 or 4 has more than four rows. No proposed order or fee-waiver form is inserted into this family.

Route

This family uses MC227 item 2.c, not the ordinary misdemeanor item 2.e. The entire item 2.c statement must be explicitly affirmed. It refuses ordinary, mixed-route, and multiple-OWI inputs. Clearing a court conviction does not remove it from the driving record. Trafficking and the special misdemeanor-marihuana route use other forms and are not handled by this packet.

Prior applications and renewed filing

MC227 item 2.c says: "I have not previously applied to have and had a first violation operating while intoxicated offense conviction set aside." A prior filing that was denied is not a prior grant of first-OWI relief. All earlier applications must still be disclosed accurately in items 3 and 4.

If an application for the same conviction was denied, MCL 780.621d(5) generally bars another application for three years after the denial order, unless the court specified an earlier date in that order. Read the actual denial order with an attorney or legal-aid provider. An elapsed interval or a reported earlier date is not a new eligibility determination or permission to file. Pending, withdrawn, unclear or previously granted applications also require disposition/order review; do not file a duplicate pending application. No denial order is supplied by this packet.

No earlier application for a listed conviction is reported in this fixture. This does not replace checking the complete history or the other statutory conditions.

Before signing or filing

- Certified copy of every conviction: NOT PROVIDED. Obtain these from the convicting court and attach each before swearing that it is attached.
- Fingerprint card RI-008: NOT PROVIDED. Obtain and complete it through law enforcement.
- Applicant signature and notarization: intentionally blank. Review all statements and sign before the clerk or notary.
- Notice of hearing and proof of service: intentionally blank. Do not certify service until it has actually occurred.

The identifying case and charge details are synthetic transcriptions. No certified attachment or fingerprint card is bundled or claimed to exist. Do not sign MC227 item 1 until every certified copy referenced in that statement is actually attached. Do not change a negative history answer to a positive answer without updating all related rows. An absent answer is never treated as a negative answer.

Filing and mailing

File with the court of conviction; separate applications are needed for different courts. Follow the included official instructions for copies, clerk scheduling, fingerprinting and distribution. MSP processing requires \$50 sent with the application packet and fingerprint card to MSP, Criminal Justice Information Center - Criminal History, PO Box 30266, Lansing, MI 48909. The relevant county, city or township prosecutor must also receive the packet. The correct prosecutor's mailing address is not supplied in this synthetic fixture and must be confirmed before mailing.

Attorney General mailing destination: use the receiving division's current expungement-specific instructions: Office of the Attorney General, Assistance with Convictions and Expungements Division, PO Box 30217, Lansing, MI 48909. The preserved MC227 instruction 11 prints PO Box 30212; this guide follows the AG's specific receiving instructions instead of silently changing the official form. MSP's separate box is 30266. This is a primary-source instruction, not a claim of a phone inquiry or a formally amended MC227.

Only after actual mailing should the applicant complete the corresponding service checkboxes and dates and sign the proof on page 3. Keep a copy and return the completed proof as the official instructions direct. The court supplies hearing details. The hearing cannot precede receipt of the required MSP report. A routine court appearance may be part of the process; an objection, contested legal question, denial or appeal requires attorney/legal-aid handoff rather than new self-help litigation from this packet.

Victim notice and participation

If a victim appears or submits a written or oral statement, stop self-help advocacy and give the packet, available records and the statement or hearing notice to an attorney or legal-aid provider, even without a formal objection. Do not miss a court date; obtain advice on attending or requesting relief. An unclear assaultive/serious-misdemeanor classification also requires review rather than a guessed category.

Effects and limits of relief

Setting aside a conviction does not extinguish an obligation to pay restitution; the court retains jurisdiction to enforce that obligation. Setting aside the conviction does not entitle the participant to a refund of a fine, costs, or other money paid as a consequence of the conviction. Do not promise universal erasure or an automatic change to collateral rights. The OWI conviction remains on the driving record; a court set-aside is not removal of that driving record.

Fees and relief

This family contains no fee-relief selection. Do not assume a court fee waiver waives the MSP processing charge, certification charges or fingerprinting charges. A requested fee waiver is refused by this builder instead of inserting an unrelated form or inventing financial answers.

Official sources checked September 7, 2026

MC227 / INST MC227, rev. 3/25, all four pages: <https://www.courts.michigan.gov/siteassets/forms/scao-approved/mc227.pdf>

AG expungement instructions and FAQ: <https://www.michigan.gov/ag/initiatives/expungement-assistance/questions>

AG receiving-division directory: <https://www.michigan.gov/ag/ag-contact-directory>

Prior filing versus prior relief, MCL 780.621c(3): https://www.courts.michigan.gov/4a5755/siteassets/publications/benchbooks/criminal/crimv3responsivehtml5.zip/Crimv3/Ch_3_Postappeal_Relief/Operating_While_Intoxicated__First_Violation-s801a.htm

Repeat application, MCL 780.621d(5), official court checklist (2022 edition; not described as a 2026 revision): <https://www.courts.michigan.gov/4a1934/siteassets/publications/benchbooks/qrms/criminal/crim-pro-posttrial/setting-aside-a-conviction-checklist.pdf>

Victim notice, MCL 780.621d(11), 780.772a and 780.827a: https://www.courts.michigan.gov/4a3310/siteassets/publications/benchbooks/cvrb/cvrbresponsivehtml5.zip/CVRB/Ch_7_Post-Disposition_Procedures/Victim_Impact_Statement_at_Setting_Aside_Conviction_or_Adjudication_Hearings.htm

Restitution and no refund, MCL 780.622(2) and (7): https://www.courts.michigan.gov/4a3310/siteassets/publications/benchbooks/cvrb/cvrbresponsivehtml5.zip/CVRB/Ch_8_Restitution/No_Remission_of_Restitution.htm

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